APP-102 Notice of Appeal/Cross-Appeal—Limited Civil Case

Clerk stamps date here when form is filed.

FILED
Superior Court of California
County of Los Angeles

MAY 31 2024

David W. Slayton, Executive Officer/Clerk of Court
By: M. Rojas, Deputy

Instructions

- This form is only for appealing in a **limited civil case.** You can get other forms for appealing in unlimited civil cases at any courthouse or county law library or online at *www.courts.ca.gov/forms*.
- Before you fill out this form, read *Information on Appeal Procedures for Limited Civil Cases* (form APP-101-INFO) to know your rights and responsibilities. You can get form APP-101-INFO at any courthouse or county law library or online at *www.courts.ca.gov/forms*.
- You must serve and file this form **no later than 30 days** after the trial court or a party serves a document called a Notice of Entry of the trial court judgment or a file-stamped copy of the judgment or 90 days after entry of judgment, whichever is earlier (see rule 8.823 of the California Rules of Court for very limited exceptions). **If your notice of appeal is late, your appeal will be dismissed.**
- Fill out this form and make a copy of the completed form for your records and for each of the other parties.
- Serve a copy of the completed form on each of the other parties and keep proof of this service. You can get information about how to serve court papers and proof of service from *What Is Proof of Service?* (form APP-109-INFO) and on the Self-Help Guide to the California Courts at *https://selfhelp.courts.ca.gov/*.
- Take or mail the original completed form and proof of service on the other parties to the clerk's office for the same court that issued the judgment or order you are appealing. It is a good idea to take or mail an extra copy to the clerk and ask the clerk to stamp it to show that the original has been filed.

You fill in the name and street address of the court that issued the judgment or order you are appealing:

Superior Court of California, County of
Stanley Mosk Courthouse
111 North Hill Street
Los Angeles, CA 90012

You fill in the number and name of the trial court case in which you are appealing the judgment or order:

Trial Court Case Number:
22STUD06657

Trial Court Case Name:
FOX NORMANDIE APARTMENTS, LP vs Derrick L. Beverly

The clerk will fill in the number below

Appellate Division Case Number:

(1) Your Information

NO FEE RECEIVED FW Granted (APP. OF WAIVER FILED) 8/28/23

a. Name of appellant (the party who is filing this appeal):
DERRICK LAMONT BEVERLY

☐ *Check here if more than one appellant and attach a separate page or pages listing the other appellants and their contact information. At the top of each page, write "APP-102, item 1a."*

NO $775 ROA

b. Appellant's contact information *(skip this if the appellant has a lawyer for this appeal):*
Street address: 849 South Normandie Ave #101 Los Angeles, CA. 90005
Street *City* *State* *Zip*
Mailing address *(if different)*: 1738 N. Las Palmas Ave #307 Los Angeles, CA 90028
Street *City* *State* *Zip*
Phone: 213-400-0252 Email: derrickcrilamont@yahoo.com

c. Appellant's lawyer *(skip this if the appellant does not have a lawyer for this appeal):*
Name: _____ State Bar Number: _____
Street address: _____
Street *City* *State* *Zip*
Mailing address *(if different)*: _____
Street *City* *State* *Zip*
Phone: _____ Email: _____
Fax: _____

Trial Court Case Name: _____ Trial Court Case Number:

(2) This is *(check a or b)*:

a. ☐ The first appeal in this case.

b. ☑ A cross-appeal (an appeal filed after the first appeal in this case *(complete (1), (2), and (3))*.

(1) The notice of appeal in the first appeal was filed on *(fill in the date that the other party filed its notice of appeal in this case)*: September 11th, 2023

(2) The trial court clerk served notice of the first appeal on *(fill in the date that the clerk served the notice of the other party's appeal in this case)*: November 21st, 2023

(3) The appellate division case number for the first appeal is *(fill in the appellate division case number of the other party's appeal, if you know it)*: 23APPC00247

(3) Judgment or Order You Are Appealing

I am/My client is appealing *(check a, b, or both)*:

a. ☑ The final judgment in the trial court case identified in the box on page 1 of this form.
The date the trial court entered this judgment was *(fill in the date)*: November 29, 2022

b. ☐ Other *(check all that apply)*:

(1) ☐ An order made after final judgment in the case.
The date the trial court entered this order was *(fill in the date)*: _____

(2) ☐ An order changing or refusing to change the place of trial (venue).
The date the trial court entered this order was *(fill in the date)*: _____

(3) ☐ An order granting a motion to quash service of summons.
The date the trial court entered this order was *(fill in the date)*: _____

(4) ☐ An order granting a motion to stay or dismiss the action on the ground of inconvenient forum.
The date the trial court entered this order was *(fill in the date)*: _____

(5) ☐ An order granting a new trial.
The date the trial court entered this order was *(fill in the date)*: _____

(6) ☐ An order denying a motion for judgment notwithstanding the verdict.
The date the trial court entered this order was *(fill in the date)*: _____

(7) ☐ An order granting or dissolving an injunction or refusing to grant or dissolve an injunction.
The date the trial court entered this order was *(fill in the date)*: _____

(8) ☐ An order appointing a receiver.
The date the trial court entered this order was *(fill in the date)*: _____

Trial Court Case Name: _____ Trial Court Case Number:

3 *(continued)*

(9) ☑ Other action *(please describe and indicate the date the trial court took the action you are appealing)*:
December 1st, 2022, application for "Writ of Possession"
December 2nd, 2022 Writ of Possession
February 24th, 2023 Writ - Return

c. ☐ The judgment or order being appealed directs payment of sanctions by an attorney for a party. The attorney *(name)*: appeals.

d. ☐ The order or judgment being appealed is attached *(optional)*.

4 Record Preparation Election

Complete this section only if you are filing the first appeal in this case. If you are filing a cross-appeal, skip this section and go to the signature line.

If you are filing the first appeal in this case, you must serve and file a notice in the trial court designating the record on appeal. You may use Appellant's Notice Designating Record on Appeal (Limited Civil Case) *(form APP-103). Check a or b:*

a. ☐ I will serve and file a notice designating the record on appeal together with this notice of appeal.

b. ☑ I will serve and file a notice designating the record on appeal later. I understand that I must file this notice in the trial court within 10 days of the date I file this notice of appeal, and that if I do not file the notice designating the record on time, the court may dismiss my appeal.

REMINDER: Except in the very limited circumstances listed in California Rules of Court, rule 8.823, you must serve and file this form no later than (1) 30 days after the trial court clerk or a party serves either a document called a Notice of Entry of the trial court judgment or a file-stamped copy of the judgment, or (2) within 90 days after entry of judgment, whichever is earlier. If your notice of appeal is late, your appeal will be dismissed.

Date: 5/8/2024

DERRICK LAMONT BEVERLY
Type or print your name

▶ _____
Signature of appellant/cross-appellant or attorney

Date: _____

_____
Type or print your name

▶ _____
Signature of appellant/cross-appellant or attorney

Date: _____

_____
Type or print your name

▶ _____
Signature of appellant/cross-appellant or attorney